

However, Confidential Information does not include:

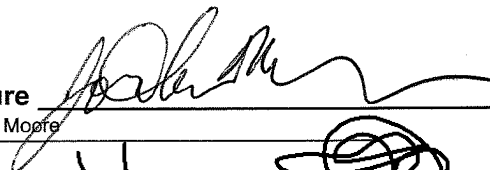
- (a) information generally available to the public;
- (b) widely used programming practices or algorithms;
- (c) information rightfully in possession of the Parties prior to signing this Agreement; and
- (d) information independently developed without the use of any of the provided Confidential Information.

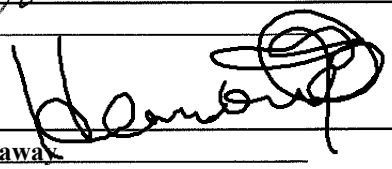
- V. **OBLIGATIONS.** The obligations of the Parties shall be to always hold and maintain the Confidential Information in the strictest of confidence and to their agents, employees, representatives, affiliates, and any other individual or entity that is on a "need to know" basis. If any such Confidential Information shall reach a third (3rd) party, or become public, all liability will be on the Party that is responsible. Neither Party shall, without the written approval of the other Party, publish, copy, or use the Confidential Information for their sole benefit. If requested, either Party shall be bound to return any and all materials to the Requesting Party as soon as possible.

This Section shall not apply to the 1st Party if this Agreement is Unilateral as marked in Section II.

- VI. **TIME PERIOD.** The bounded Party's(ies') duty to hold the Confidential Information in confidence shall remain in effect until such information no longer qualifies as a trade secret or written notice is given releasing such Party from this Agreement.
- VII. **INTEGRATION.** This Agreement expresses the complete understanding of the Parties with respect to the subject matter and supersedes all prior proposals, agreements, representations, and understandings. This Agreement may not be amended except in writing with the acknowledgment of the Parties.
- VIII. **SEVERABILITY.** If a court finds that any provision of this Agreement is invalid or unenforceable, the remainder of this Agreement shall be interpreted so as to best affect the intent of the Parties.
- IX. **ENFORCEMENT.** The Parties acknowledge and agree that due to the unique and sensitive nature of the Confidential Information, any breach of this Agreement would cause irreparable harm for which damages and/or equitable relief may be sought. The harmed Party in this Agreement shall be entitled to all remedies available at law.
- X. **GOVERNING LAW.** This Agreement shall be governed under the laws in the State of Virginia.

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the date written below.

1st Party's Signature  Date 01/30/2025
Print Name Jonathan Moore

2nd Party's Signature  Date 01/31/2025
Print Name Anne Hathaway